

The Mumbai Port Trust (Transport, Handling and Storage of Dangerous Goods) Regulations, 2007

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[THE-MUMBAI-PORT-TRUST-TRANSPORT-HANDLING-AND-STORAGE-OF-DANGEROUS-GOODS-REGULATIONS-2007 of 2007](#)

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[The Mumbai Port Trust \(Transport, Handling and Storage of Dangerous Goods\) Regulations, 2007](#)

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[Ministry of Shipping, Road Transport and Highways](#)

[\(Department of Shipping\)](#)

[\(Ports Wing\)](#)

[G.S.R. 115\(E\). - In exercise of the powers conferred by Section 124 of the Major Port Trusts Act, 1963 \(38 of 1963\), the Central Government hereby approves the Mumbai Port Trust \(Transport, Handling and Storage of Dangerous Goods\)](#)

Regulations, 2007 made by the Board of Trustees of Mumbai Port Trust, in exercise of the powers conferred on them by Section 123 of the said Act and which were published in the Gazette of the Government of Maharashtra dated 15th September, 2005 and 22nd September, 2005 vide No. SECY/G/GM-MS/HF 145 II/6592 which is annexed to this notification, as "Schedule".

Schedule

Part-I 1.0 Short Title and Commencement.

(1)

These Regulations may be called "The Mumbai Port Trust (Transport, Handling and Storage of Dangerous Goods) Regulations, 2007."

(2)

They shall come into force from the date of publications in the Official Gazette.

2.

0.

Application.

- These Regulations are applicable within the Port Limits of Mumbai and all the Docks, Wharves, Quays, Bunders, jetties, Railways, Buildings and other works constructed or acquired by or vested in the Board of Trustees of the Port of Bombay and on lands and/or foreshore and in all the Docks under the control and superintendence of the Port of Mumbai is hereinafter called the Port.

3.0

Nothing contained in these rules shall be deemed to be in derogatory to the provisions of the Merchant Shipping Act, 1958, the Explosives Act, 1884, the Petroleum Act, 1934, the Dock Workers (Safety, Health and Welfare) Act, 1986, the Environment (Protection) Act, 1986 and the Regulations framed thereunder and any guidelines given by the Regulatory Authorities.

4.0

Definitions.

- 4.1 Boat - Boat means a barge or similar craft used for movement of goods within the Port.

4.2

Chairman - Chairman means the Chairman, of the Board of Trustees and includes any person appointed to act in his place.

4.3

Competent Authority - Competent Authority for the purpose of these regulations means Deputy Conservator as the officer duly appointed by the Board of Trustees to administer the provisions of these regulations.

4.4

Dangerous Goods - 'Dangerous Goods' means goods which by virtue of its nature, quantity or mode of handling and storage of such goods are either singly or collectively liable to endanger the life or the health of the persons within the Port limits or on a vessel or to cause damage to property within such Port limits and includes such goods contained in a receptacle, portable tank, freight container or vehicles as defined in the IMDG Code. The term includes an empty receptacle, portable tank or tank vehicle which has been previously used for carriage of dangerous goods unless such receptacle has been cleaned and dried or, when the nature of the former contents permits such carriage with safety and allow the containers to be closed securely.

Dangerous goods include all substances -

(i)

having properties coming within the classes listed in the IMDG code;

(ii)

substances defined as explosive as defined by the Explosives Act, 1884, and/or the Explosive Rules, 1983;

(iii)

any other goods by virtue of its properties the competent authority may specify as dangerous goods;

(iv)

hazardous chemicals listed in Schedule-I of the Manufacture, Storage and Import of Hazardous Chemicals Rules, 1989.

4.5

Handling - 'Handling' means the operation of loading and unloading of a vessel, railway wagon or vehicle transfer to,

from or within a storage area and/or within a vessel and transshipment between vessels and any ancillary operations in the Port Area and includes stuffing and destuffing of freight container.

4.6

IMDG Code - IMDG Code means the latest edition of International Maritime Dangerous Goods (IMDG) Code adopted by the Maritime Safety Committee of the International Maritime Organization and amended by the Organization time to time.

4.7

- 'IMO' means the International Maritime Organization.

4.8

Inspector of Dangerous Goods - Inspector of Dangerous Goods for the purpose of these regulations means a person appointed by the Competent Authority to ensure compliance with these rules for handling/ storage/ disposal or transport of the dangerous goods coming to this Port.

4.9

Master - 'Master' in relation to any vessel making use of the Port means any person having for the time being the charge or control of such vessel except a Pilot, Harbour Master, Assistant harbour Master, Dock Master or berthing Master of the Port.

4.10

Owner - 'Owner' when used in relation to goods includes any consignor, consignee, shipper or agent for the sake of custody, loading and unloading of such goods and when used in relation to any vessel making use of the Port includes any part owner, charterer, consignee or mortgagee in possession thereof.

4.11

Responsible Person - 'Responsible Person' means a person appointed by the 'Owner' and/or 'Master' and empowered to take all decisions relating to the tasks of transport, handling and storage of dangerous goods, and having the necessary knowledge and experience for that purpose.

4.12

Transport - 'Transport' means the movement of Dangerous Goods by one or more modes of transport in Port.

4.13

Unstable Substance - 'Unstable substance' means a substance which may present a hazard under transport or storage conditions due to spontaneous reaction (e.g. Polymerisation, decomposition, etc.) unless the necessary specific precautions are taken to prevent such a hazard (e.g. inhibition, dilution, refrigeration or other equally effective measures).

4.14

Vessel - 'Vessel' means anything made for the conveyance, carriage and/or transportation mainly by water of dangerous goods in the Port.

4.15

Marine Pollutants - 'marine Pollutants' means substances which, because of their potential to bioaccumulate in seafood or because of their high toxicity to aquatic life, are subject to the provision of Annex III of MARPOL 73/78 (International Convention for the prevention of pollution from ship, 1973/1978), as amended.

5.0

Classification of Dangerous Goods.

- For purpose of these regulations dangerous goods are classified into the following classes based of IMDG Code.

Class 1

:

Explosives

Class 2

:

Gases

Class 3

:

Flammable liquids

Class 4.1

:
Flammable solids
Class 4.2
:
Flammable solids or substances liable to spontaneous
combustion
Class 4.3
:
Flammable solids or substances, which in contact with water,
emit flammable gases.
Class 5.1

:
Oxidising Substances
Class 5.2

:
Organic Peroxides
Class 6.1

:
Poisonous (toxic) substances
Class 6.2

:
Infectious substances
Class 7

:
Radioactive substances
Class 8

:
Corrosive substances
Class 9

:
Miscellaneous Dangerous Substances and articles.
5.1

Except for safety explosives, pyrotechnic and fire works, no explosive will be allowed to be handled at Mumbai Port. While handling such explosives, requirements as specified by the competent authority shall be adhered to.

5.2
Supplementary rules for handling of explosives in the Port of Mumbai are notified under the Explosives Act, 1884 and/or the Explosives Rules, 1983.

5.3
Rules for handling of Dangerous goods of Class 2 to Class 9 have been specified in Part IV of these Rules.

5.4
Additional requirements for handling of dangerous goods of Class 2 to Class 9 for the Port of Mumbai are specified in the Schedule I.

5.5
Evaluation of the hazards of any substances if not notified by the IMDG Code, the shipper/ consignee shall apply to the Director General of Shipping, Government of India, for the same, under the provision of the Merchant Shipping (Dangerous Goods) Rules.

Part-II 6.0 Arrival of the vessel.

- The Owner/ Agent of a vessel wishing to discharge and/or load dangerous goods shall submit to the Competent Authority the following documents at least 48 hours in advance before the vessel's arrival in Port.

6.1
Application form for handling of dangerous goods with the following documents (as described in Schedule II).

6.2

Dangerous Goods list (Import) (3 copies)

6.3

Dangerous Goods list (Export) (3 copies)

6.4

List off transit cargo, if any on-board.

7.0

Deposit.

- In case of direct delivery/ loading cargo or for limited period of storage in Port, the Port Authority may collect a deposit from Owner/ Agent to cover the estimated cost of handling, storage, escort and disposal of such goods and the penalty to be imposed, if any. Amount so deposited shall be refunded after the cargo is duly loaded/ discharged or handled as per instructions in the permit issued under Section 8.0.

8.0

Grant of Permit.

- Competent Authority on receipt of these documents and the deposit if any, shall give instructions to the Owner/ Agent specifying the mode of discharge, storage, separation, requirements, equipment to be made available and any other conditions concerning safety of the Port and/or the vessel. In relation to the container cargoes the Competent Authority shall also designate the areas/ depot where the container shall be stuffed/destuffed.

9.0

Commencement of cargo handling.

- 9.1 The Master shall submit a dangerous goods checklist as prescribed in Schedule III.

9.2

The vessel may commence handling of dangerous goods only after obtaining instructions from the Competent Authority as specified in 8.0 and after the Inspector of Dangerous Goods has satisfied himself of the correctness of the check list and any other declaration made by the Owner/ Master.

10.0

Responsibilities of the Master.

- 10.1 A Master of vessel carrying dangerous goods, while lying in the Port Limits shall exhibit where it can best be seen.

(a)

a red flag from sunrise to sunset; and

(b)

a red light from sunset to sunrise.

10.2

He shall, wherever dangerous goods are handled -

- depute a responsible person to personally supervise the operations. Such Officer shall take and/or cause to be taken all due precautions as are necessary under the IMDG Code and these regulations.
- keep the fire fighting gear in readiness with hoses and branch pipes connected.
- ensure that repairs to any part of the vessel necessitating the use of open flame/ open fire are not carried out.
- bank carefully fires in engine room and extinguish all other fires or non-safety lights.
- maintain efficient and effective communication with the responsible person on the shore.
- provide and use when necessary the equipment specified in the EMS and MFAG Schedule as published by the IMO.
- provide access and facility to the officials of the Port for Inspection of the dangerous goods.
- ensure that no damage/ leaky containers or packages of dangerous goods are landed either in barge or ashore without the express permission of the Competent Authority of the Port.
- ensure that appropriate personal protective equipment is used by those engaged in handling of these dangerous goods, and also ensure that the cargo gear and the accessories used are as required for safe handling of such goods.
- ensure that all the dangerous goods are correctly declared as required by the IMDG Code and the Port and are correctly labeled and marked as per IMDG Code before discharging.
- Dangerous goods shall be stowed safely and appropriately in accordance with the IMDG code or nature of goods. Incompatible goods shall be segregated from one another.
- ensure that dangerous goods checklist is submitted to the Port officials, before commencement of cargo handling as

specified in 9.1 of this regulation.

- In the event of accidental damage to dangerous goods containment on board, the master shall be responsible for taking action and prompt measures for avoiding accidents. He shall abide by all the instructions specified by the competent authority.

11.0

Responsibilities of Owner/ Agent.

- 11.1 Owner/ Agent shall make a true and correct declaration of the dangerous good to be handled in the Port and those in transit through the Port, whether in containers or other packages.

11.2

Cases/ Receptacles of each class of dangerous goods brought into the Port area shall conform strictly with the packaging standard stipulated in the IMDG Code. Such case/ receptacles shall remain in a sound condition while dangerous goods are handled in the Port area.

11.3

If any receptacle/ case of dangerous goods is damaged or starts leaking during handling in the Port, preventive measures as may be indicated by the Competent Authority shall be followed.

11.4

Repairs to the damaged case/ receptacles of dangerous goods or repacking their contents shall be carried out under the supervision and guidance of the Competent Authority subject to special restrictions as applicable to individual classes of dangerous goods.

11.5

No cases/ receptacles of dangerous goods shall be opened anywhere within the Port area except for the purpose of drawing samples by the Customs in an approved manner and with permission to do so from the Competent Authority. such permission may be granted subject to such additional restrictions and precautions as may be considered necessary.

11.6

Tools liable to produce sparks shall not be used to open/ close/ repair cases/ receptacles of dangerous goods or for practicable to do so, samples shall be drawn by suction method without titling the container.

11.7

Marking, labeling and packing of all the dangerous goods shall be same as prescribed in IMDG Code.

11.8

Handles goods which are in a leaky, damaged or in a deteriorated condition only as per the specified instructions of the Competent Authority.

11.9

Provide every facility to the Competent Authority or official of the Port to inspect handling and stowage of the dangerous goods.

11.10

Ensure that all the formalities for the clearance of the dangerous goods, especially with the Customs, are completed as early as possible so that the delivery can be taken immediately after discharge.

11.11

Stuffing and de stuffing of dangerous goods in freight containers shall be undertaken as per recommendations in the IMDG Code and the inspector of dangerous goods.

11.12

Provide Material Safety Data Sheet (MSDS) or details of characteristics of the dangerous good, if asked by the competent authority or port official.

12.0

Obligation to take precautions.

- 12.1 Steamer Agents/Consignors/Consignees of dangerous goods and occupiers of custodians of all premises within the Port areas shall always observe and/or cause to be observed any safety precautions required by the Competent Authority and prescribed in these regulations.

12.2

When dangerous goods are handled or stored within the Port area Agents/Owners/Consignors/Consignees fail to take

reasonable precautions to prevent accidents, the Competent Authority may take such action as is reasonable for the safety of the Port and may recover from such Agents/Owner/Consignors/Consignees such reasonable expenses as may have been incurred. It may be adjusted against the amount deposited and if the amount so deposited is not adequate, the Port may recover its expenses by sale of the cargo.

13.0

Determination of Categories of new Substances.

- When Owner/Agent seeks to import cargo which is dangerous but not covered by the IMDG Code sufficient notice shall be given to the competent authority of such cargo, failing which such cargo may be refused entry. If such cargo is listed in Schedule 18 the Manufacture, Storage and Import of Hazardous Chemicals Rules, 1989, the Owner/ Agent shall seek specific permission and inform the Pollution Control Board about the safety measures being taken for the reception of such cargo.

14.0

Responsibility of Barge Owner/Operator.

- 14.1 Barges carrying dangerous goods shall not load different classes of dangerous goods which are incompatible and shall maintain sufficient segregation between classes when carrying more than two classes which are compatible. In every case, the instructions given by the Inspector of Dangerous Goods or the Competent Authority shall be complied with

14.2

Surface area in holds as well as on deck of barges/lighters carrying dangerous goods should be of non-friction and non-sparking type.

14.3

Lighting of naked lights or open flames on barges carrying dangerous goods at any place is strictly prohibited.

14.4

A safe distance of 9.0 metres should be maintained between two barges berthed alongside at any designated wharf or pier.

14.5

As far as practicable, barges will not be Double-Banked while handling

14.6

Overnight stay at any wharf or pier of barges/lighters with dangerous goods shall be with the express permit granted by Inspector of Dangerous Goods.

14.7

Barges shall be permitted to come alongside by the Shed Superintendent and he shall be given sufficient notice to receive such barges and plan handling.

Part - III 15.0 General Provisions.

- 15.1 The Competent Authority may refuse dangerous goods intended for storage within or transit through the Port, if their presence is likely to endanger life or property because of their volume or condition, the condition of their mode of conveyance, or the conditions that may be prevailing in the Port area.

15.2

If any dangerous substance within the area constitutes an unacceptable hazard, the competent authority may order the removal of such substances or packages, freight container, portable tank vessel or vehicle containing it to any other place or to sea as container, portable tank vessel or vehicle containing it to any other place or to sea as considered necessary.

15.3

An unstable substance will not be accepted unless all conditions necessary to ensure the safe transport and handling have been met and properly certified, by the concerned.

15.4

Only one class of cargo shall be handled at a time.

15.5

The Competent Authority may destroy in a safe manner such dangerous goods, which in his opinion endanger the safety of Port. Where such Dangerous Goods are so destroyed, the Owners/ Agents of the goods shall not be entitled to any compensation whatsoever. The Port may remove or destroy any Dangerous Goods which have been handled or

transported contrary to the instructions of the Competent Authority. The expenses incurred for doing so may be recovered from owner/agent or from the sale of the cargo, if the owner/agent does not meet these expenses.

15.6

The vessel will retain on board all the pollutants and slop caused by the leakages of any dangerous cargoes and take every precaution as per anti pollution rules of the Port.

15.7

Competent Authority Shall direct the handling of marine pollutants. Every precaution shall be taken to ensure that such pollutants are not dumped in the Marine Environment or dumped at sea.

16.0

Power to exempt.

- 16.1 The person aggrieved by any order of the Inspector of the Dangerous Goods of the Port or the Competent Authority may appeal to the Chairman within 15 days of the said order. Such appeal shall be heard and decided by the Chairman within 30 days thereafter. The decision given by the Chairman shall be final and binding.

16.2

The Chairman on advice of the Competent Authority may in exceptional cases, such as in case of defence cargo relax all or any of the provisions of the Regulations provided that the agency handling the cargo shall fully comply with safety measures and undertake full responsibility for such handling activity.

17.0

Penalties.

- 17.1 Any person who commits a breach of any regulations shall be liable to pay a penalty of Rupees Twenty Thousand and if the breach continues, a further penalty of Rupees Two Thousand per day or part thereof for period during which the said breach continues to the Mumbai Port Trust. The penalty as aforesaid shall be in addition to any action that may be taken under the applicable port regulations.

17.2

If the default continues the Competent Authority may, with the concurrence of the Chairman, remove the vessel from the berth.

Part - IV Regulations for Handling and Storage of Dangerous Goods(IMDG Code Class 2 to Class 9)

IMDG Code Class 2

18.0

The Gases are sub-divided in to the following groups.

18.1

Class 2.1 - Flammable gases.

18.2

Class 2.2 - Non-flammable, Non-toxic gases.

18.3

Class 2.3 - Poisonous or Toxic gases.

Precautions and Handling measures for IMDG Code Class 2

19.0

The Owner/Agent shall abide by all the instructions specified by the Competent Authority.

19.1

As far as fabrication fittings, markings, colour code labelling on cylinders manufactured in India are concerned, they shall conform the requirements of Gas Cylinder Rules, 1981 if the capacity is upto 1000 liters, and of Static Mobile Pressure Vessels (Unfired) Rules, 1981 if the capacity exceeds 1000 litres. Cylinders imported shall be compliance with the IMDG Code and marked to indicate that the appropriate authority as accepted by International Maritime Organisation (IMO), has tested and certified the same.

20.0

The valves of the cylinders/containers carrying gas shall be protected against damage either by being so designed or by the provisions of a stout metal cap securely attached to the body of the cylinder/container. There shall not be any physical contact between metal cap and the valve or the valve body.

21.0

Cylinders/Containers of gas shall be marked or labelled legibly as per IMDG Code with the name of the gas. Cases in

which cylinders/containers of gas are packed shall also be marked or labelled likewise.

22.0

Precautions for Handling of Cylinders.

- Cylinders shall be adequately supported during handling.
- Trolleys and cradles of adequate strength shall as far as possible, be used when moving the cylinders.
- Cylinders shall be handled carefully and not be allowed to fall upon one another or otherwise subjected to any undue shock.
- Sliding, dropping or playing with cylinders is prohibited.
- Liquified petroleum gas cylinders and cylinders liquifiable gases shall always be kept in an upright position and shall be so placed that they cannot be knocked over.
- Cylinders used in horizontal position shall be adequately secured so that they do not roll.
- Open flames, lights, lighting of fires, welding and smoking shall be prohibited in close proximity of any cylinder containing flammable gases except those only in use for welding, cutting or heating.

23.0

All the gas cylinders/containers shall be stocked on trays while handling. However, if this is not practicable, slings of any other safe method shall be used as prescribed by the Competent Authority.

24.0

Every care and precaution shall be taken to prevent the contamination of valves and fittings of the cylinders/containers by oily and fatty substances.

25.0

Cylinders/containers containing flammable gases and toxic gases shall be handled separately and kept adequately separated from each other and from cylinders having other type of gases, at all times.

26.0

Cylinders/Containers of gas shall at all times be protected from sun's rays and other sources of direct heat.

27.0

Cylinders/Containers of gas shall not be overstacked with other cargo.

28.0

These regulations are also applicable in the case of empty cylinders/containers, unless they are effectively made gas free.

IMDG Code Class 3

29.0

Definition.

- 'Flammable Liquids' are liquids, or mixtures of liquids, or liquids containing solids in solution or suspension, which give off a flammable vapour at or below 61° C closed-cup test, normally referred to as the "flash point" and are packed in drums, receptacles and cases. Packaged forms of petroleum products shall conform to the requirements laid down in the petroleum rules, 1976.

29.1

For the purpose of these rules, Flammable Liquids are subdivided into the following groups:

29.1.1

Class 3.1 - Low flashpoint group of liquids having a flash point below 18° C (O° F) Closed-cup test.

29.1.2

Class 3.2 - Intermediate flashpoint group of liquids having a flashpoint of - 18° C (O° F) up to, but not including 23° C (73° F), closed-cup test.

29.1.3

Class 3.3 - High flashpoint group of liquids having a flashpoint of 23° C (73° F) up to and including 61° C (141° F) closed-cup test.

Precautions and Handling measures for IMDG Code Class 3

30.0

The Owner/Agent shall abide by all the instructions as prescribed by the Competent Authority.

31.0

The Liquids in this class are liable to polymerise and liberate dangerous gases and heat, possibly resulting in rupture of

the receptacle/container. To avoid polymerization, suitable additives or inhibitors if required shall be added or other measures taken so as to minimize the risk of polymerization. Utmost precautions and care shall be taken while handling the containers/receptacles holding these liquids. They shall not be dropped, bumped, rolled or otherwise mishandled.

32.0

The vapours from some of the liquids in this type have properties dangerous to human life. Labour handling them shall be protected against this hazard.

33.0

When these goods are handled, they shall be away from all the direct and indirect sources of ignition. Even in transit, they shall be kept in cool and well-ventilated place.

34.0

All personnel working in the area or in the vicinity shall be prohibited from bringing matches, lighters or flints and other material likely to cause ignition or spark or fire hazard.

35.0

Whenever a leaky drum is traced, it shall be Isolated and handled with utmost precaution.

36.0

Barring exigencies, these goods shall only be handled during day light hours.

37.0

Packaging of these goods shall be such as to protect them from external sources of ignition. If this is damaged, it should be rectified immediately.

38.0

Non-sparking tool and suction methods should be used while drawing samples from these liquids.

39.0

Segregation and separation of these cargoes vis-a-vis other cargoes shall be as prescribed in the IMDG Code.

Handling and Storage of IMDG Code Class 4

40.0

Definition.

- 40.1 Class 4.1 Flammable Solids. - The substances in this class are solids which; under conditions encountered in transport are readily combustible or may cause or contribute to fire through friction, selfreactive substances (solids and liquids) which are liable to undergo a strongly exothermic reaction, solid desensitized explosives which may explode if not diluted sufficiently.

40.2

Class 4.2 Substances liable to spontaneous combustion.

The substances in this class are substances (solids and liquids) which are liable to spontaneous heating under normal conditions encountered in transport, or to heating up in contact with air, and being then liable to catch fire.

40.3

Class 4.3 Substances, which, in contact with water emit flammable gases.

The substances in this class are substances (solids and liquids) which, by interaction with water, are liable to become spontaneously flammable or to give off flammable gases in dangerous quantities.

Precautions and Handling measures for IMDG Code Class 4.1

41.0

The Owner/Agent shall strictly abide by the instructions for handling of these goods as given by the Competent Authority.

42.0

Care shall be taken to ensure that the packages are not damaged during the handling. This cargo should not be dropped, bumped, rolled or otherwise mishandled.

43.0

Particular care shall be taken that there is no spillage of this cargo during handling. In the event of spillage, it shall be disposed of in a safe manner as prescribed by the Competent Authority.

44.0

Under no circumstances, any vehicles or machineries or other cargo be allowed to roll over these spillage of flammable solids.

45.0

It is particularly important to ensure that at every stage during handling/storage or transporting such cargo is handled away and at safe distance from other cargoes, as may be prescribed by the Competent Authority.

Precautions and Handling measures for IMDG Code Class 4.2

46.0

Regulations from 41.0 to 45.0 are applicable to this class also. In addition, they will be subjected to the following restrictions.

47.0

If packed in hermetically sealed condition throughout the period, they can be allowed to remain within the Port area.

48.0

Flammable solids or substances liable to spontaneous combustion shall be transit stored in small stacks either inside the hazardous cargo shed or in any other premises indicated in the instructions covering individual consignments of such goods. Proper space shall always be left between such small stacks and between the stacks and the walls all around. Such stacks shall be inspected regularly and periodically by the concerned for signs of overheating. In case any stack is found to be warmer than normal, such stacks shall be broken up, cooled by aeration and re-stacked in a safe manner.

Precautions and Handling measures for IMDG Code Class 4.3

49.0

Regulations from 41.0 to 45.0 shall be applicable to this class also. In addition, they shall be subjected to the following restrictions.

50.0

Flammable solids or substances which in contact with water emit flammable gases shall not be handled whenever it is raining.

50.1

During all stages of handling and transit storage of such substances, all possible precautions shall be taken to prevent such substances getting wet or exposed to damp air.

51.0

As some substances are liable to react dangerously even with the damp air, any container holding this cargo which is damaged or broken shall be handled as directed by the Competent Authority and he may take such action as is considered necessary for ensuring safety. He may even order the destruction of the container, if he deems it necessary.

IMDG Code class 5

52.0

Definition.

- 52.1 Class 5.1 Oxidising Substances (Agents). - These are substances which, although in themselves not necessarily combustible, may, generally by yielding oxygen, cause, or contribute to, the combustion of other material.

52.2

Class 5.2 Organic Peroxides

Organic substances which contain the bivalent O-O structure and may be considered derivatives of hydrogen peroxide, where one or both the hydrogen atoms have been replaced by organic radicals. Organic peroxides are thermally unstable substances, which may undergo exothermic self-accelerating decomposition. In addition, they may have one or more of the following properties.

- be liable to explosive decomposition
- Burn rapidly
- Be sensitive to impact or friction
- react dangerously with other substances
- Cause damage to the eyes.

53.0

The Owner/Agent shall strictly abide by the instructions for handling of these goods as given by the competent Authority.

Precautions and Handling measures for IMDG Code Class 5.1

54.0

All the substances in this class have the property of giving off oxygen when involved in fire and mixture of these

substances are readily ignited with combustible material sometimes even by friction or impact. Therefore, all the Boats, all the places or the shore or warehouses shall be thoroughly cleaned prior to receipt of this cargo.

55.0

Any damaged or leaky container shall be moved safely and the instructions of the Competent Authority shall be followed strictly.

56.0

In the event of spillage of this cargo, such spillage should be wept separate and disposed oil as prescribed by the Competent Authority. Under no condition should this spillage be rolled over by weight of any type.

57.0

These substances should particularly be well separated form acids, since they are liable to give off toxic gases on contact.

58.0

It is necessary to thoroughly clean the barges and all the areas where this cargo was stored after its delivery or disposal.

59.0

Special restrictions on Ammonium Nitrates - Ammonium Nitrate to be brought to the Port should be certified to be free from organic impurities, as specified by the IMDG Code. A certificate of purity issued by the Competent Government Authority in the country of manufacture shall have to be produced before such cargo or vessel is allowed inside the docks. These rules shall not apply to Ammonium Nitrate of fertilizer grade.

Precautions and Handling measures for IMDG Code Class 5.2

60.0

Receptacles of liquid organic peroxide shall be handled in dead upright position. Even slight tilt may lead to spillage. This liquid is liable to react violently with the metal of the receptacle or any other substance they contact, which may lead to violent explosion.

61.0

Other organic peroxides (not in the liquid state) shall be handled with utmost care. Using landing cushions if necessary thus avoiding frictional contact.

62.0

If any package/receptacles containing peroxides is discovered to be damaged or in a leaky conditions, it shall be drenched copiously with water and disposed off in a manner as directed by the Competent Authority Re-packing or repair of the damaged receptacle is not permitted in the Port area.

63.0

While these goods are being handled, the fire hoses should be laid out with the fire crews in readiness throughout.

64.0

Contact of organic peroxide with the eye shall be avoided and when working this type of cargo, necessary protective equipment is to be provided and used.

65.0

At all times, the cargo should be kept away from spars, flame or any other source of ignition.

66.0

These cargo packages shall be protected from direct sun's rays and stores and handled in well ventilated places.

67.0

Organic peroxides shall be handled separately and isolated from any other cargo.

68.0

This cargo shall only be handled during the daylight hours.

IMDG Code Class 6

69.0

Definition.

- 69.1 Class 6.1 Poisonous (toxic) substances. - "Toxic" has the same meaning as "Poisonous" Theses are substances liable either to cause death or serious injury or to harm human health if swallowed or inhaled, or by skin contact.

69.2

Class 6.2 Infectious substances

These substances which are known or reasonably expected to contain viable micro-organisms (including bacteria,

viruses, rickettsiae, parasites, fungi) or other agents, which can cause disease in animals or humans.-

70.0

The Owner/Agent shall strictly abide by the instructions for handling of these goods as given by the competent Authority.

Precautions and Handling measures for IMDG Code Class 6.1

71.0

Receptacles of poisonous substances brought in the Port shall remain in a hermetically sealed or effectively dosed condition so as to prevent escape therefrom of vapours/liquids/dust.

72.0

The receptacles/containers should be inspected prior to receipt of the barge and at all times, they are being handled. Any leaky or damaged receptacle should be separated immediately and instructions of the Competent Authority shall be followed.

73.0

The substance of this class which has a flash point below 61°C (141° F) is also a flammable liquid by definition. Therefore, while handling such type of substance, all care shall be exercised as recommended for flammable liquid and they should be stored in a cool and well ventilated place.

74.0

All receptacles containing such cargo shall be handled in an upright position to prevent spillage.

75.0

These substances could be poisonous either by skin absorption, ingestion or inhalation. Therefore, labourers or any person involved in handling these substances shall be protected by appropriate protective equipment as prescribed by the Competent Authority.

76.0

The receptacles of such substances should be handled well separated from the other cargo.

77.0

If and when these substances are stored in open, they should be properly covered with weighted tarpaulin, inspected frequently to detect any leakages and the stack should be prominently marked with appropriate IMDG label, so that the people working in the vicinity can identify it as poisonous goods. However, these substances with a flash point of less than 61° C(141° F) shall be stored in a cool and well-ventilated place as any flammable liquid is stored.

78.0

Disposal - In case of damage or spillage during transit or storage, the disposal of its contents and all other goods contaminated by a spillage shall be determined by the Competent Authority.

78.1

The concurrence or Advice of the Port Health Officer or the Customs Authorities or any statutory Authority shall be obtained before deciding mode of disposal.

79.0

Action to be taken in the event of any accident involving poisonous substances

In the event of any receptacle/case of any poisonous substance getting accidentally damaged/leaky during handling or transit storage. The Inspector of Dangerous Goods or Responsible person Shall:

79.1

Notify the Competent Authority immediately.

79.2

Direct the person in the vicinity to move away to a safe area.

79.3

Arrange to send persons who are suspected to have been contaminated with the poison to the Port Trust Hospital after giving First Aid if practicable. A responsible employee of the concerned section shall accompany these persons to convey to the Duty Doctor information regarding the name and known properties of the poison involved in the accident.

79.4

Suitable action shall be taken for de-contaminating the area of spillage.

79.5

Goods contaminated by the spilt poison shall be isolated for disposal as stipulated.

80.0

De-Contamination.

- In case of spillage involving poisonous substance of this class, particularly liquid pesticides, decontamination measures appropriate to the substance concerned shall be carried out under competent supervision.

80.1

No person shall be allowed to enter any hold of a vessel or compartment where there is any reason to suspect leakage of some substances of this class unless the Master or the responsible officer has taken all the safety measures and satisfied that it is safe to enter the same.

80.2

Emergency entry into the hold under other circumstances shall be undertaken by the trained staff, wearing self-contained breathing apparatus and other necessary protective clothing.

Precautions and Handling measures for IMDG Code Class 6.2

81.1

Any Owner/Agent who wishes to handle infectious substances shall give the Competent Authority all the relevant particulars of the goods to be handled well in advance. This should be enough for the Port Authorities to seek the expert advice and help so that these goods can be handled abiding by all the restrictions as may be determined by such experts.

81.2

Consigners of infectious substances, being responsible for the packing of these substances, shall ensure that the packages arrive in port or their destination in sound condition and present no hazard to persons or animals during conveyance.

81.3

Whenever occasions arises to handle such substances or to pass through this port, the IMDG code guidelines and rules shall apply.

81.4

It is the responsibility of the consignee/consignor to obtain necessary licence for the import/export of infectious substances from the competent authority. Upon receipt of known or suspected high-risk infectious substances of human or animal origin, the consignee/consignor shall immediately acknowledge receipt to the consignor/consignee by most rapid of communication available to him.

IMDG Code Class 7

82.0

Definition.

- Radioactive material means any material containing radionuclides where both the activity concentration and total activity in the consignment exceeds the values specified in the IMDG Code.

Precautions and Handling measures for IMDG Code Class 7

83.0

Handling of Radioactive substances shall be permitted only against special permits issued by the Directorate of Radiation. Protection, Bhabha Atomic Reserch Centre (BARC) and general precautions as are indicated by the said authority.

84.0

They shall submit to the competent Authority copies of the hazardous cargo manifest together with the copies of the BARC instructions sufficiently in advance to enable the Port to make arrangements to receive this cargo.

85.1

All radioactive materials must be declared as such in all transport and port documents.

85.2

Consignees of radioactive substance received shall depute a technically qualified person to supervise handling of such consignment. He shall work in collaboration with the Inspector of Dangerous goods during handling and transit-storage. However, competent person is responsible to see that the recommendations of BARC are carried out.

IMDG Code Class 8

86.0

Definition.

- Corrosive substances means substances which, by chemical action, will cause severe damage when in contact with

living tissues or, in the case of leakage, will materially damage, or even destroy, other goods or the means of transport.

87.0

The Owner/Agent shall strictly abide by the instructions for handling of these goods as given by the Competent Authority.

Precautions and Handling measures for IMDG Code Class 8

88.0

This cargo shall be handled well separated from the cargo other class and special care should be taken to insure that acids and alkalis are well separated.

89.0

The receptacles/carbuoys shall be handled with extreme care and always in an upright position to prevent any damage or spillage.

90.0

Any damaged receptacles/carbuoys shall be isolated and moved further under instructions of the Competent Authority and special precautions shall be taken to avoid direct skin contact.

91.0

The goods in this class with flash point of less than 61°C shall be flammable goods and as such all the necessary precautions shall be taken during the handling and storage.

92.0

These goods shall be stored in covered spaces and when this is not possible they shall be stored in the open on a covered platform, well segregated from other cargoes and well marked.

93.0

Whenever any receptacle/carbuoys handling corrosive substances get damaged, they shall be rendered harmless or destroyed, they shall be rendered harmless or destroyed as directed by the Competent Authority.

94.0

In the event of an accident.

94.1

All the persons in the vicinity shall be directed to move away to a safe area.

94.2

The affected persons shall be given first first aid and thereafter immediately transferred to a hospital or other place of treatment.

94.3

Specialised medical aid shall be summoned and

94.4

The Competent Authority shall be notified forthwith.

95.0

The competent Authority shall organise suitable action for de-contaminating the area of spillage as well as all the articles contaminated by the spilt corrosive.

IMDG Code Class 9

96.0

Definition.

- It includes substances and articles, which, during transport, present a danger not covered by other classes.

Precautions and Handling measures for IMDG Code Class 9

97.0

While giving the clearance for such substances, the Competent Authority shall carefully consider the characteristic properties and known hazards of such substances and shall stipulate such precautionary measures as may be necessary for ensuing safety during their handling and storage.

98.0

Repeal and Savings

On commencement of these regulations, the Transport, Handling and Storage of Dangerous Goods in the Port of Bombay Regulations, 1994 stands repealed.

Provided that-

(a)

Such repeal shall not affect the previous operation of the said Regulations or orders or practices or anything done or actions taken thereunder; and

(b)

any proceeding under the said Regulations pending at the commencement of these regulations shall be conducted and disposed of, as far as may be feasible, in accordance with these regulations.

I

1.

0. The dangerous goods for the purpose of mode of discharge, handling and storage in the port of Mumbai are divided into following categories according to the level of risk involved and with reference to IMDG Classification, packaging and stowage.

1.1

Category A

IMDG Code Class

3.1

- All Substances of this class

3.2

- FP below 10° C

4.1

- (Packaging Group I and Stowage Category D)

4.2

- (Packaging Group I, II and Stowage Category D & E)

4.3

- (Packaging Group I and Stowage Category D)

6.1

- (as above and Flash Point below 10° C)

8.0

- (as above and Flash Point below 10° C)

To be discharged in stream for direct delivery at Haji Bunder. However, the Competent Authority may permit containerized cargo to be discharged/loaded at the open berth in the Docks for direct delivery/loading

1.2

Category B

IMDG Code Class

2.1

- All substances of this class

2.3

- All substances of this class

3.2

- Flash Point between 10° C to 23° C

4.1

- (Packaging Group II and Stowage Category C and E)

4.2

- (Packaging Group I, II and Stowage Category D and E)

4.3

- (Packaging Group II and Stowage Category C and E)

5.1

- (Packaging Group I and Stowage Category D and E)

5.2

- (Packaging Group I and Stowage Category D and E)

6.1

- Flash Point between 10° C to 23° C

7.0

- All Substances of this class

8.0

- Flash Point between 10° C to 23° C

To be discharged in stream for direct delivery at Haji Bunder. Containers carrying cargo in this category may be permitted to be landed in the docks for direct removal to haji Bunder for storage and delivery.

1.3

Category C

IMDG Code Class

2.2

- All substances of this class

3.3

- (Flash Point between 23° C to 61° C)

4.1

- (Packaging Group III and Stowage Category A and B)

4.2

- (Packaging Group II and III and Stowage Category A, B and C)

4.3

- (Packaging Group III and Stowage Category A, and B)

5.1

- (Packaging Group II and III and Stowage Category A, B and C)

5.2

- (Packaging Group II and Stowage Category A, and C)

6.1

- (Packaging Group I and II and Stowage Category C, D and E)

8.1

- (Packaging Group I and II and Stowage Category C, D and E)

To be permitted to be discharged in the Docks on barges or wharf for direct removal to Haji Bunder for storage and delivery.

1.4

Category D

IMDG Code Class

6.1

- (Packing Group II and III and Stowage Category A and B)

8.0

- (Packing Group II and III and Stowage Category A and B)

To be permitted to be discharged in the Docks for storage and delivery, subject to such conditions as may be specified by the Competent Authority for handling and storage.

2.0

Responsibility of the Owner/Agent:

The Owner/Charterer/Agent or consignees shall make true and correct declaration of the dangerous goods being carried by the vessels and thereafter obtain prior clearance from the Inspector of Dangerous Goods regarding the mode of handling of the dangerous goods prior to the vessel's arrival in the Port. Even when the vessel is carrying Category 'C' or 'D' type cargo, where vessels are allowed to come into the docks, prior permission will have to be obtained failing which the vessel may be refused dock entry.

3.0

Responsibility of Ship's Master:

The Ship Master shall make correct and true declaration of dangerous goods on the ship to the Pilot prior to vessel's berthing in stream or in docks.

4.0

Responsibility of Barge Owner;

4.1

Barges carrying dangerous goods shall not mix different classes of cargoes, which are incompatible and also will maintain sufficient segregation between classes when carrying more than two classes, which may be compatible. In every case, the instruction as given in by the Inspector of Dangerous Goods or the Competent Authority is complied with.

4.2

Surface area of barges/lighters carrying dangerous goods should be of non-friction and non-sparking type.

4.3

Lighting of naked lights or open flames on barges carrying dangerous goods at Haji Bunder is strictly prohibited.

4.4

A safe distance of 9 meters (30 feet) should be maintained between two barges berthed along side at Haji Bunder.

4.5

Barges will not be Double-Banked at Haji Bunder.

4.6

Overnight stay of barges/lighters at Haji Bunder is prohibited. They can, however come alongside with the prior permission of Shed Superintendent on duty to enable him to make adequate arrangement in time to receive the barges and ensure enforcement of prescribed procedure regarding unloading during day light hours.

4.7

The Assistant Commissioner (Port) will be responsible to see that the provisions of 4.4 to 4.6 above are complied with.

5.0

The vessels carrying goods under Category 'A' or any other category of dangerous goods, in container for other ports are allowed to retain these cargoes on board. Similarly, when the cargo is in packages for other Port in Category A,B,C and D, these cargoes also may be retained on board. However, in all cases of transit cargoes, the Owner/Agent will make the true and correct declaration to the Inspector of Dangerous Goods and he shall abide by such precaution as may be prescribed by the Inspector. The Master of the incoming vessel shall also make a correct and true declaration of the dangerous cargo in transit to the Pilot.

II

Application Form for Handling of Dangerous Goods

Name and address of the Owner/Agent of the Vessel.

To,

The Inspector of Dangerous Goods,

.....Port Trust,

.....

Sir,

Ref:- Name of the Ship and Voyage No.....

Due Date.....

The above vessel is expected to arrive at this Port from(Port) on (date).

2. The vessel will be carrying following dangerous goods as shown in attached Dangerous Goods list for discharge at this port.

3. The vessel also carries the following dangerous goods as transit cargo for the next ports of call as shown in separate list.

4. We propose to load following dangerous goods as shown in the attached Dangerous Goods as shown in the attached Dangerous Goods list (Export), on vessel.

5. Please issue necessary instructions for handling and storage of these cargoes.

Thanking you

Yours faithfully,

(Name)

Vessel Agent/Owner

Encl: (1) Dangerous Goods list (Import)

(2)

Dangerous Goods list (Export)

(3)

List of Transit Cargo, if on-board.

III

Ship's Checklist for Dangerous Goods

Ship's Name.....

Port.....

Berth.....

Date.....

Instruction of Completion

The safety of operations requires all the questions to be answered in the affirmative. If an affirmative answer is not possible, the reason should be given.

Serial No.

Remark

1

2

1

Is the vessel securely moored?

2

Is there an effective duckwatch in attendance on board?

3

Is the ship-shore communication system operation?

4

Are fire hoses and fire fighting equipment ready for immediate use?

5

Are sea and overboard discharge valves, when not in use, closed, so that the pollutants are not discharged overboard?

6

Are "No Smoking" signs prominently displayed in work area and smoking requirements being observed?

7

Are the requirements for the use of galley and other cooking appliances being observed?

8

Are naked light requirements being observed?

9

Is the personal protective gear available for use by the work force?

10

Is the work area properly illuminated for the purposes of carrying on the work?

11

Is the handling equipment properly tested and certified and suitable for use?

12

Are you ready to implement the FMS plan as prescribed for the cargo?

13

Do you have the necessary antidotes as prescribed by MFAG

Code?

14

Are repairs involving hot work in the vicinity of the work place stopped?

15

Are the containers, packages, carbuoys, bottles or drums or any other means of packing and, free of damage, free of leakage and otherwise safe for purpose?

Master

Footnote: No vessels will commence handling of dangerous goods unless the checklist is signed by the master. In addition, if any of the answers is in the negative permission of the Competent Authority, is required prior to starting handling of dangerous goods operations.

Related AI tags, queries and research notes

Translation